

See also: The Statute of Anne 106–107 ■ The Universal Declaration of Human Rights 222–229 ■ The European Convention on Human Rights 230–233 ■ *Google Spain v. AEPD and Mario Costeja González* 308–309 ■ The Open Internet Order 310–313



The “Pirate Publisher” flaunting copyright was satirized in this cartoon in the American magazine *Puck* in 1886, the year of the Berne Convention, which sought to defend copyright.

automatically in the creator. Several updates to the Convention followed. For example, in 1908, it was agreed that copyright would last for 50 years (later extended to 70) after the creator’s death.

A digital world

Since the 1990s, there has been an exponential growth in digital media, with music, books, journals, photographs, film, and art available online at the touch of a key. As it became easier to copy and upload content, it proved harder to determine its provenance. Artists, authors, and others regularly found their creations hosted online with no attribution and no hope of receiving royalties. The big challenge facing legislators was in applying the provisions of the Berne Convention to the digital world.

To meet that challenge, in 1996, a conference arranged by the World Intellectual Property Organization adopted the WIPO Copyright Treaty (WCT), which came into effect 6 years later. The WCT outlined the importance of copyright protection

in encouraging creative activity. After all, why would anyone create anything if it was going to be copied and passed off online as someone else’s work?

Protection of creative content and ownership was sorely needed. The US Chamber of Commerce said in 2018 that online video piracy alone was costing the American economy almost \$30 billion a year, in addition to up to 560,000 job

losses in the country’s film and television industry. The law also protects industrial design. Alongside patent and trademark laws, it was a legal weapon in the battle against counterfeit goods. Global trade in these fake items was worth \$509 billion by 2016, according to the Organization for Economic Cooperation and Development (OECD).

Further copyright legislation has followed, including, in the US, the Digital Millennium Copyright Act (1998), which increased penalties for those infringing copyright on the internet, and the Music Modernization Act (2018) to protect the copyright and royalties of artists whose music is streamed online.

The problem remains, however, that legal mechanisms, though well intentioned, are still finding it hard to police digital copyright. ■

Kim Dotcom

One of the most shameless exploiters of the almost limitless possibilities of the internet, Kim Dotcom was born Kim Schmitz in 1974. After operating lucrative scams in Germany, he moved to Hong Kong, where he launched the file sharing website Megaupload in 2005. In its heyday, Megaupload possibly accounted for 4 percent of all internet traffic. Anyone could register and anyone could upload. A vast repository of illegal, downloadable files

was the result, with Dotcom profiting from the huge advertising revenue. As the money flooded in, he bought cars, houses, planes, and yachts.

However, the spending spree came to an end in 2012, with Dotcom’s arrest in New Zealand after he was charged in the US with copyright infringement, money laundering, and other offenses. He has denied these charges. By March 2020, he was still attempting to prevent his extradition to the US.